

District- Noakhali

In the Supreme Court of Bangladesh
High Court Division
(Criminal Miscellaneous Jurisdiction)

Criminal Revision No. _____ of 2024

In the matter of:

An application under Section 439 read with
Section 435 of the Code of Criminal Procedure.

-And-

In the matter of:

Md. Kamal Hossain

.... Accused-Petitioner

-Versus-

The State and another

.... Opposite Parties

Mr. Md. Asadur Rahman, Advocate

.... For the accused-Petitioner.

Mr. Sujit Chatterjee, D.A.G. with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

The 27th February 2024

Let the Supplementary Affidavit be formed part of the
main application.

This application under Section 439 read with Section 435
of the Code of Criminal Procedure at the instance of sole

accused Md. Kamal Hossen of Session Case No.452 of 2021 arising out of Complainant Register (C.R.) Case No.467 of 2019 (Petition 760 of 2019) under Section 138 of the Negotiable Instrument Act, 1881 is directed against impugned order dated 26.10.2023, passed by the learned Joint Session Judge, 1st Court, Noakhali rejecting an application filed by the petitioner for discharge.

Mr. Md. Asadur Rahman, learned Advocate for the petitioner submits that the petitioner took loan from the Islami Bank and pursuant to above loan he issued the impugned cheque of Tk.50,000,00/- (fifty lac) to above Bank which was dishonored after submission for encashment. Before submission of above cheque for encashment the complainant rescheduled above loan and on above ground other six cases under Section 138 of the Negotiable Instrument Act, 1881 filed by the complainant against the petitioner were dismissed and the petitioner was acquitted. On 05.10.2023 the accused petitioner submitted a petition for discharge of the accused petitioner from above case under Section 138 of the Negotiable Instrument Act, 1881 but the learned Joint Session Judge rejected above petition vide impugned order dated 26.10.2023 which is not tenable in law.

We have considered the submissions of the learned Advocate for the petitioner and carefully examined all materials on record.

It turns out from record that in above case charge was framed on 13.01.2022 and on conclusion of prosecution

evidence the case was fixed for pronouncement of judgment on 11.10.2023. A Criminal Court can discharge an accused at the time of framing of the charge and no document of the accused can be considered at above stage of the proceeding. Once charge is framed by a Criminal Court that accused cannot be discharged by the same Criminal Court. As such filing of above petition for discharge by the accused on 05.10.2023 was misconceived and the learned Joint Session Judge rightly rejected above petition.

This is not a case for recovery of loan under the Artha Rin Adalat Ain. This is a case under Section 138 of the Negotiable Instrument Act, 1881 and the Criminal Court shall dismiss the case among other if the accused succeeds to prove that the amount of money covered by the dishonored cheque was paid earlier or the impugned cheque is devoid of any consideration. The complainant did not make any admission that the money covered by the impugned cheque was paid. On the contrary the complainant has given evidence in this case supporting the allegations as set out in the complaint.

In above view of materials on record we are unable to find any substance in this application under Section 439 read with Section 435 of the Code of Criminal Procedure and the same is rejected summarily.

We are directing the learned Joint Session Judge, 1st Court, Noakhali to dispose of the case on merit expeditiously within a period of 2(two) months from the date of receipt of this order.

Let a copy of this order be transmitted to the Court concerned at once.

MD. MASUDUR RAHMAN
BENCH OFFICER